



File No.: EXP202310961

RESOLUTION OF

WARNING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 24, 2023, a communication from the General Directorate of the Civil Guard, Balaguer Company, Tárrega Post, was received by the Spanish Agency for Data Protection (AEPD), which forwarded a Complaint Record dated July 19, 2023, regarding a presumed irregularity in the use of video surveillance devices.

In this communication, the AEPD is informed of the following:

On July 19, 2023, the General Directorate of the Civil Guard, Balaguer Company, Tárrega Post, conducted an inspection at ***ESTABLISHMENT.1, located at ***ADDRESS.1, owned by A.A.A. with NIF ***NIF.1, an establishment that has a video surveillance system inside, which is not properly signposted as it lacks the required informative signs for the video surveillance area and informational materials regarding data protection available to customers and users.

SECOND: The aforementioned file was initiated as a result of a complaint from the CIVIL GUARD - ALCARRAS POST CTRA. VALMANYA S/N 25180 (ALCARRAS), which was received by this Agency on October 15, 2019, for similar facts to the current ones.

On November 20, 2019, the AEPD sent a reminder of obligations regarding data protection concerning the use of video surveillance devices in the same premises, located at ***ADDRESS.1, to A.A.A. within the framework of file E/10967/20191.

The reminder of obligations stated:

"Agents of the Security Forces have informed this Agency of the installation, at ***ADDRESS.1, of video surveillance cameras that would violate data protection regulations concerning the processing of images.

In light of the above, I inform you that you can consult the requirements necessary to carry out personal data processing through such devices on the website

<https://www.aepd.es/areas/videovigilancia/index.html>.

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In the event of not adopting the necessary measures to comply with the legally established requirements, you would incur a violation of the provisions of data protection regulations, which could lead to the initiation of the corresponding investigative and sanctioning actions."

The aforementioned communication was notified on December 2, 2019, according to the information in the file.

THIRD: On December 20, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the complained party for the presumed violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: The notification of the initiation agreement, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent by certified mail on 30/12/2024, but was not collected by the responsible party and was returned to the AEPD on 15/01/2025, marked as "absent" / "unknown." The publication in the Official State Gazette (BOE) of the initiation agreement of this procedure occurred on 24/01/2025.

FIFTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed

that no allegations have been received from the complained party.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: On July 24, 2023, by means of a communication dated July 19, 2023, the General Directorate of the Civil Guard, Balaguer Company, Tárrega Post, informed the AEPD of the presumed irregularity in the use of video surveillance devices at the establishment ***ESTABLISHMENT.1, located at ***ADDRESS.1, without it being properly signposted as it lacks the required informative signs for the video surveillance area and informational materials regarding data protection available to customers and users.

SECOND: The complained party is the data controller of ***ESTABLISHMENT.1, located at ***ADDRESS.1.

THIRD: There is no informative sign for the video surveillance area, either inside or outside the premises, indicating the identification of the data controller of the captured images, the possibility of exercising rights regarding data protection, or any other information.

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction."

Images captured by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

III

Data protection regulations

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several entrances, such a distinctive sign of a monitored area must be provided at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

IV

Obligations regarding video surveillance

Likewise, the processing of images through a video surveillance system, in order to comply with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a further purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties provided for in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be fulfilled.

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In this regard, a "layered information" system is provided in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information will be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information of the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its

responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, assess them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects camera processing for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

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The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

V

Classification and qualification of the infringement

In this case, the AEPD has received a complaint from the General Directorate of the Civil Guard, Balaguer Company, Tárrega Post, Code: 003250, reporting the respondent, as the owner of ***ESTABLECIMIENTO.1, located at ***DIRECCIÓN.1.

The description of the complaint states that "at 10:30 hours on July 19, 2023, the Patrol of the Balaguer Company conducts a PVR/Fiscal/Administrative inspection at ***ESTABLECIMIENTO.1, in ***LOCALIDAD.1. Once completed, a Report of Infraction is issued for violation of data protection regulations regarding the placement of a video surveillance system in the establishment. There was no sign or informative notice in the video surveillance area that was sufficiently visible."

In accordance with Article 77.5 of the LPACAP, "The documents formalized by officials recognized as authorities, which, observing the corresponding legal requirements, record the facts verified by them, shall serve as proof of these facts unless proven otherwise."

Therefore, it is considered that A.A.A. would have committed an infringement of the information duties provided for in Article 13 of the GDPR, in accordance with the provisions of Article 22 of the LOPDGDD.

Article 83.5 b) provides that "infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...)

b) the rights of the data subjects according to Articles 12 to 22;" (...)"

For the purposes of the statute of limitations for infringements, Article 72.1 h) of the LOPDGDD qualifies as very serious "The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law."

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The statute of limitations for very serious infringements provided for in the LOPDGDD is three years.

VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation states in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third section that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall be closed.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

In the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of the violated article.

VII

Adoption of measures

Upon confirmation of the infringement, it is agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

The controller is required to notify this Agency within one month of the adoption of the following measures:

- Certify that they have placed the informative sign in a sufficiently visible location of the monitored area, which should include at least the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in data protection regulations.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ISSUE A WARNING to A.A.A. with NIF ***NIF.1 for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A. with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to certify that they have complied with the placement of the informative sign in a sufficiently visible location of the monitored area, including the information provided therein, which must at least identify the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in data protection regulations.

THIRD: TO NOTIFY this resolution to A.A.A. with NIF ***NIF.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the...

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Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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